

25STCV26802 25STCV26802

County: los-angeles

Division: Civil Law and Motion

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV26802

ARI

POURAT vs SANTA CRUZ BICYCLES LLC., A CALIFORNIA LIMITED LIABILITY COMPANY

August

24, 2026

8:30

AM

NATURE OF PROCEEDINGS:

MOTION OF PLAINTIFF ARI POURAT FOR ATTORNEY FEES, COURT COSTS, AND LITIGATION
EXPENSES. MOTION OF DEFENDANT SANTA CRUZ
BICYCLES LLC TO TAX COSTS.

RULING:

The Court grants

Plaintiff's Motion for Attorney Fees, except denies a multiplier.

Plaintiff

is awarded attorneys' fees, costs and expenses, in the total amount of \$23,692.50 against Defendant SANTA CRUZ BICYCLES LLC.

The Court denies Defendant's

Motion to Tax Costs.

The Court allows costs to

Plaintiff in the requested amount of \$1,034.70.

Plaintiff to give notice.

I.

BACKGROUND

On September 12, 2025, ARI

POURAT (Plaintiff) filed a Lemon Law Complaint against (Defendant), listing Causes of Action for:

1.

BREACH OF IMPLIED WARRANTY OF MERCHANTABILITY UNDER THE SONG-BEVERLY WARRANTY ACT;

2.

BREACH OF EXPRESS WARRANTY OBLIGATIONS UNDER THE SONG-BEVERLY WARRANTY ACT; and

3.

VIOLATION OF SONG-BEVERLY WARRANTY ACT SECTION 1793.2.

Plaintiff alleges purchasing,

for \$9,025.12, a new 2023 Santa Cruz Heckler 9 C 29 S-Kit E-Bike, having unsafe defects, including a recalled battery that could overheat, which Defendant was unable to repair after a reasonable number of attempts.

On July 9, 2026, Plaintiff

filed the Motion for attorney fees, court costs, and litigation expenses.

Defendant opposes, contending that overbilling and fabricated sums should be reduced.

Additionally, on August 3, 2026, Defendant filed the Motion to Tax Costs, which Plaintiff opposes by explaining details of recoverability.

II.

LEGAL STANDARD

“The Song-Beverly Act’s attorney fee provision ““requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended, and the monetary charge being made for the time expended are reasonable.” (Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147, 1158.) Under the Song-Beverly Act, the question whether attorneys’ fees were reasonably incurred may depend on circumstances including, “factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved.” (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 470.

Civil Code Section

1794(d) requires a court to base an attorneys’ fee award on actual time expended on the case, and reasonably incurred, as to time spent, and amount, under all circumstances including complexity of the case, procedural demands, skill exhibited, and results achieved. (McKenzie v. Ford Motor Co. (2015) 238 Cal.App.4th 695, 698, 703.) “The ‘plain wording’ of section 1794, subdivision (d) requires the trial court to ‘base’ the prevailing buyer’s attorney fee award ‘upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged.’” (Warren v. Kia Motors Am., Inc. (2018) 30 Cal.App. 5th 24, 35. Accord Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 817. But see Reynolds v. Ford Motor Co. (2020) 47 Cal.App.5th 1105, 1110 [as to the Song-Beverly Act, fee awards must be based on the judge’s calculation of actual time expended determined to have been incurred reasonable, and the Act does not include a requirement that the court also determine that the amount of attorneys’ fees is reasonable].) The Song-Beverly Act requires allowing fees and costs “determined by the court to have been reasonably incurred by the buyer in connection with the commencement

and prosecution" of the case, which is reviewed under the abuse of discretion standard. (Levy v. Toyota Motor Sales, U.S.A., Inc. (1992) 4 Cal.App.4th 807, 813. See also generally Duff v. Jaguar Land Rover N. Am., LLC (2022) 74 Cal.App.5th 491, 501 [summarizing Civ. C. § 1794(d)]. Cf. Dominguez v. Am. Suzuki Motor Corp. (2008) 160 Cal.App.4th 53, 60 [section 1794, subdivision (d) conditions an attorney fees award on prevailing in an action, and includes pre-commencement or post-commencement of cases].)

The appellate court reviews awards of attorney fees under Civil Code section 1794, subdivision (d), for abuse of discretion. (Doppes, supra, 174 Cal.App.4th at p. 998.)

As for costs, if items appear on their face to be proper, the verified memorandum of costs is prima facie evidence of their propriety, shifting the burden of proof to the attacking party. (Adams v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486-1487; Benach v. County of L. A. (2007) 149 Cal.App.4th 836, 855; Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131-132 ["trial court erred in requiring additional proof from" the party claiming costs, where the party attacking costs had the burden]; Santantonio v. Westinghouse Broad. Co. (1994) 25 Cal.App.4th 102, 116, 121 [after a prima facie showing based on verified cost memorandum, objecting party has the burden to prove costs should be disallowed]; Ladas v. Cal. State Auto. Assn. (1993) 19 Cal.App.4th 761, 773; Rappenecker v. Sea-Land Serv., Inc. (1979) 93 Cal.App.3d 256, 266.)

Furthermore, "in enacting Civil Code section 1794, subdivision (d) the Legislature intended the phrase 'costs and expenses' to cover items not included in " 'the detailed statutory definition of 'costs' " set forth in Code of Civil Procedure section 1033.5." (Warren v. Kia Motors Am., Inc. (2018) 30 Cal.App.5th 24, 42, 43 ["it is undisputable that Warren 'reasonably incurred' the \$5,882 cost of the trial transcripts 'in connection with the ... prosecution of [the] action.' "].)

III.

ANALYSIS

A. Motion

for Attorney Fees

Plaintiff's Reply

contains assertions that defense counsel's declaration fails to competently prove fabrication, false statements or unperformed work. Additionally, Plaintiff explains details of attacked fees amounts (e.g., Reply, 1:20-9:5) and costs (ibid., 10:23-11:7). Further, Plaintiff advocates a small multiplier based upon risk involved in a contingent fee agreement, counsel's skill, and a successful outcome in prevailing.

Defendant requests that

the fees be significantly reduced to reflect only those actually and reasonably incurred, given fabricated time entries such as for some emails and discovery requests never received. Defendant also seeks a negative multiplier for lackluster litigation. Also, Defendant attacks cost amounts in the Motion to Tax Costs.

As to Song–Beverly

warranty claims, prevailing buyers have the burden to show that the fees incurred were reasonably necessary to the conduct of the litigation and were reasonable in amounts. (Doppes, supra, at p. 998.) “[V]erified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (Horsford v. Board of Trustees of California State Etc. (2005) 132 Cal.App.4th 359, 396 [deciding it was an abuse of discretion to completely disregard counsel's time records based upon finding numerous instances of overlapping work].)

“ ‘In challenging

attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.’ ” (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488. Accord, Etcheson v. FCA US LLC (2018) 30 Cal.App.5th 831, 848.)

Records amounting to

vague block billing are not objectionable per se, but are a risky choice, because moving parties have the burden to support fees requests, and the strategy may lead to trial courts' discretionary curtailing of the number of compensable hours. (Christian Research Inst. v. Alnor (2008) 165 Cal.App.4th 1315, 1325.)

A limited degree of

success in obtaining litigation objectives is a factor that judges may, but are not required to, consider in determining the award of reasonable attorney fees. (Bernardi v. County of Monterey (2008) 167 Cal.App.4th 1379, 1397; Meister v. Regents of Univ. of Cal. (1998) 67 Cal.App.4th 437, 454.) Case law does not require attorney fee awards to be in proportion to awards in litigation. (Bernardi v. County of Monterey (2008) 167 Cal.App.4th 1379, 1397.)

There is a dearth of California law about considering templates usage in deciding motions for attorneys' fees. "A legal proposition asserted without apposite authority necessarily fails." (People v. Taylor (2004) 119 Cal.App.4th 628, 643.) A trial court's referencing counsel's use of templates, including reasoning that fewer attorneys were necessary in a case, was affirmed. (See Morris v. Hyundai Motor Am. (2019) 41 Cal.App.5th 24, 31-33, 39 ["asserted that even though her counsel used 'form documents' in the case, work was necessary to conform those templates to the actual facts of this case."].) A federal Court of Appeals rejected an argument that a trial court judge should have reduced attorneys' fees on the grounds of counsel's use of a form template for drafting a complaint, where other evidence nonetheless supported the finding of a total reasonable amount. (See Laney v. BBB Logistics, Inc. (11th Cir. 2021) 844 F. App'x 203, 209.)

As to parties prevailing in an action on a contract with terms for recovery of attorney fees and costs, costs such as secretarial, copying, telephone, expert fees and travel, are recoverable as a part of attorney fees, "if they represent expenses ordinarily billed to a client and are not included in the overhead component of counsel's hourly rate." (Bussey v. Affleck (1st Dist. 1990) 225 Cal.App.3d 1162, 1166-1167, abrogated by Hsu v. Semiconductor Sys., Inc. (2005) 126 Cal.App.4th 1330, 1342 [noting split of authority].)

Courts are not required to include a multiplier fee enhancement, but may consider, in their discretion, novelty and difficulty of the questions, skill displayed, extent the case precluded other employment, and the contingent nature of the fee award. (Mikhaeilpoor v. BMW of N. Am., LLC (2020) 48 Cal.App.5th 240, 248 ["court went further as to the multiplier issue, emphasizing that this was 'not a complicated case,' and the 'request for a multiplier was specious.' "].)

In finding the reasonableness and evidentiary support of all claimed amounts, the Court has considered the attorney declarations of both sides, and finds sufficiently detailed billing record entries and descriptions to show that each amount is actual and recoverable.

While the opposing Declaration is unusually detailed in opining about some unreasonable and suspect amounts, the Reply in rebuttal well explains the reasonableness of criticized amounts.

As for the multiplier, the Court finds that this relatively short case did not involve novel, difficult or drawn-out issues, or much litigation activity, or necessitate exceptional legal skills.

B. Motion
to Tax Costs

Defendant requests that the Court reduce claimed costs by \$355.95, considering costs never incurred.

The Song-Beverly Warranty Act, "requires payment only of those costs and fees 'determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution' of the underlying action." (Levy v. Toyota Motor Sales, U.S.A., Inc. (1992) 4 Cal.App.4th 807, 813.)

Beyond filing the adequate Memorandum of Costs, Plaintiff supportively addresses details of cost and expense recoverability, especially in the context of this case brought under the Song-Beverly Warranty Act that authorizes costs beyond those limited categories available in other case types.

IV.
CONCLUSION

Therefore, the Court grants the Motion for Attorneys' Fees absent a multiplier, and denies the Motion to

Tax Costs, for reasons stated above.